

The Ignition Interlock Program and Leandra's Law

Courts must order all persons convicted of driving while intoxicated or aggravated driving while intoxicated, or of a penal law offense for which an alcohol related violation of any provision of section 1192 of the Vehicle & Traffic Law is an essential element to install and maintain an ignition interlock on any vehicle owned or operated by such driver for at least 12 months. (This device, purchased and installed at the expense of the motorist, is connected to a motor vehicle ignition system and measures the alcohol content of the breath of the driver. The vehicle cannot be started until the driver provides an acceptable sample breath.) The 12-month requirement may be waived by the court if the defendant demonstrates that the interlock device was installed for at least six months, unless the court orders the interlock device to be installed for a longer period of time. The judge also must order an alcohol assessment for a repeat offender. If the assessment indicates alcohol treatment is necessary, the judge may be required to order the completion of treatment as a condition of probation.

Drivers who commit these alcohol-related offenses with a child under 16 years old in the vehicle may be charged with a class E felony, punishable by up to four years in prison. (This is known as Leandra's Law.)

The law also makes it a felony to drive drunk with a conditional license, which is a license that may be issued by the DMV when someone is convicted of an alcohol-related offense. Such a license may be used only for driving to and from essential destinations such as school, work and medical appointments. The conditional driver license will be revoked if the motorist does not comply with the court terms or for a conviction for any traffic offense except parking, stopping or standing.

A FEW IMPORTANT REMINDERS

- If you kill or cause an injury to another person because of an alcohol or other drug-related violation, you can be convicted of criminally negligent homicide, aggravated vehicular homicide, vehicular manslaughter

or vehicular assault. These carry a fine of thousands of dollars and can carry a maximum jail term of 25 years.

- If you drive while your license is suspended or revoked, you face a mandatory fine of \$200 to \$1000 and a mandatory jail term or probation. If impaired or intoxicated when you are arrested, the maximum mandatory fine is \$5,000 and the vehicle can be seized.
- Liability insurance may not cover the cost of injuries and damage from a traffic crash. You could be sued for thousands of dollars and you would find it difficult and expensive to buy liability insurance for several years.
- Besides fines and surcharges, you could also face costly legal fees.
- You could have a criminal record, which makes it harder to get a job or move forward in your job.

HOW TO AVOID TROUBLE

You are not likely to worry about the results of your actions while you are impaired or intoxicated. The time to consider them, and how to prevent them, is before you become impaired or intoxicated.

- If you go to events with the same group of friends, rotate drivers. Each friend takes a turn being the "designated driver" who does not drink any alcohol.
- Arrange to remain overnight or ride home with a friend who does not drink.
- Before you drink, give your car keys to a friend who does not drink and who will not let you drive after you drink.
- Call a cab, or contact a Ride Share operator or use public transportation.
- Drink slowly. Alternate between drinks with alcohol and drinks without any alcohol.
- Do not consume (e.g. smoke, vape, eat, etc.) marijuana/cannabis-based products before driving.